

		Based on the foregoing, the SAC alleges facts showing despicable conduct that was carried on by State Farm with a willful and conscious disregard of Plaintiff's rights under the partial AOBs, and of the insureds, sufficient to establish malice or oppression to support a claim for punitive damages against a corporation. The allegations made on "information and belief" are supported by factual allegations, i.e., State Farm's denial or refusal to honor 23 separate valid Appraisal Demands, leading Plaintiff believe the allegations to be true. Additionally, State Farm cites to no authority requiring that a pleading identify an officer, director, or managing officer by name. The added allegations in the SAC sufficiently allege authorization and/or ratification by State Farm on the part of officers and/or directors and/or managing agents based on a coordinated, company-wide practice or policy of rejected appraisal demands whenever presented under an AOB. State Farm's motion to strike is DENIED. State Farm to file and serve an Answer within 10 days. The Case Management Conference is continued to September 3, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
108	Castillo vs. Aesthetic Management Partners, 25-01521920	<i>Off-Calendar.</i>
109	Cervantes vs. Verdin, 24-01418094	Plaintiffs Juan Cervantes, Glendi Felix, Lucio Perez Lara, Martin Ramirez, Guadalupe Ramirez, Hector Mendez Rama, Alberto Ivan Mendez Rama, Ever Antonio Franco Zelaya, Sandy Yanet Avalos Ríos, Filiberto Lopez, Raul Mojica, Salvador Nava Ceja, Oscar Campos, Deiby Noe Medrano Franco, Delvina Franco Zelaya, Rosa Franco, Carlos Daniel Franco Zelaya, Ana Griselda Franco, Priscilla Mejia, Melquiades Gregorio, Victor Sanchez, Joel Mojica, David Kenduck, and Jacob Vernezobre ("Plaintiffs") move for summary judgment against defendant Jonathan Verdin d/b/a Achilles Investments LLC ("Defendant") on their causes of action for fraud/intentional misrepresentation and breach of written contract. On January 15, 2026, plaintiff Juan Cervantes's Motion to Deem Facts Admitted was GRANTED and his Requests for Admission, Set One, to Defendant were deemed admitted. The admissions establish that Defendant entered into written contracts with Plaintiffs and promised multiple returns on their investments, Defendant received money pursuant to

		those contracts, Defendant never invested the money or obtained the promised return, and Defendant knew when he entered into the contracts that he could not guarantee any return on investments made in the stock market. They further establish that Defendant had no intent to invest the money received from Plaintiffs, he used the money received from Plaintiffs for purposes other than those represented in the contracts, and his actions caused Plaintiffs financial loss in the full amount as alleged in the Complaint. Plaintiffs have shown that Defendant fraudulently induced them to enter into the contracts underlying their Complaint, Defendant breached those contracts by failing to obtain the promised returns and make payments to Plaintiffs as agreed, and Defendant's conduct has damaged Plaintiffs. Thus, Plaintiffs have carried their burden of proving the elements of their causes of action. (Code Civ. Proc., § 437c(p)(1).) Defendant has failed to raise any triable issue of a material fact as to the causes of action or any defenses. Thus, Plaintiffs are entitled to summary judgment as a matter of law. In light of the above, the Motion for Summary Judgment is GRANTED. Plaintiffs are ordered to prepare the appropriate order and judgment. <i>Moving party to give notice.</i>
110	LUC vs. MAI, 26-01568185	<i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>
111	Rask vs. County of Orange, 25-01495933	On June 12, 2026, the Court continued the hearings on three motions: (1) Motion to Stay Proceedings; (2) Demurrer to First Amended Complaint; and (3) Motion to Strike Portions of FAC. (ROA 93.) The hearings were continued because they necessarily required the Court to review the First Amended Complaint, which is not in the file. Plaintiff was ordered to file a copy of the FAC no later than 9 court days prior to the continued hearings, which Plaintiff did not do. Accordingly, the Court sets an OSC re: dismissal for failure to prosecute for September 17, 2026 at 1:30 p.m. in Department W15. Plaintiff is ORDERED to file a response no later than 9 court days before the hearing. The Court CONTINUES the hearings on the above three motions to September 17, 2026 at 1:30 p.m. in Department W15. No further briefing is allowed.